

Court No. - 40

Case :- WRIT - C No. - 14254 of 2021

Petitioner :- Anil Kumar Gupta

Respondent :- U.P.Power Corporation Limited And 2 Others

Counsel for Petitioner :- Pradeep Kumar Yadav

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Misra,J.

Hon'ble Dinesh Pathak,J.

Though Sri Pradeep Kumar Yadav, learned counsel for the petitioner, could get connected but he says that he is not able to hear the Court.

Sri Baleshwar Chaturvedi and the learned Standing Counsel are virtually present for the respondents.

In view of the above, put up, as fresh, again on 12th July, 2021 before appropriate Bench.

Order Date :- 1.7.2021

AKShukla/-

Court No. - 40

Case :- WRIT - C No. - 14254 of 2021

Petitioner :- Anil Kumar Gupta

Respondent :- U.P.Power Corporation Limited And 2 Others

Counsel for Petitioner :- Pradeep Kumar Yadav

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Misra,J.

Hon'ble Dinesh Pathak,J.

Put up as fresh on 15th July, 2021.

Order Date :- 12.7.2021

Manish Himwan

Court No. - 3

Case :- WRIT - C No. - 14254 of 2021

Petitioner :- Anil Kumar Gupta

Respondent :- U.P.Power Corporation Limited And 2 Others

Counsel for Petitioner :- Pradeep Kumar Yadav

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

Shri Baleshwar Chaturvedi, learned counsel for the respondents prays for and is granted two days' time to complete the instructions, as to how, a demand notice has been issued to the father and also to the son for the same connection number.

Put up this case as fresh on **20th July 2021.**

Order Date :- 15.7.2021

Saurabh

Court No. - 3

Case :- WRIT - C No. - 14254 of 2021

Petitioner :- Anil Kumar Gupta

Respondent :- U.P.Power Corporation Limited And 2 Others

Counsel for Petitioner :- Pradeep Kumar Yadav

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Ajai Tyagi,J.

Heard learned counsel for the petitioner, Shri Baleshwar Chaturvedi, learned counsel appearing on behalf of respondent no. 2 and learned Standing Counsel for the respondent no. 3.

The instant petition has been filed seeking following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari for quashing the impugned Recovery Notice dated 25.03.2021 against father of petitioner namely Totaram of Rs. 2,69,661/- and another notice issued against the petitioner of Rs. 2,42,580/- issued by respondent No. 2 (Annexure No. 4 & 5 to this writ petition).

(ii) Issue a writ order or direction in the nature of mandamus commanding and directing the respondent authorities not to recover the recovery amount Rs. 2,69,661/- and Rs. 2,42,580/- issued by respondent No. 2 (Annexure No. 4 & 5 to this writ petition)."

The submission of learned counsel for the petitioner is that the recovery notice has been issued against the petitioner as well as against his father i.e. Totaram for the same electricity connection which is arbitrary and illegal.

On the basis of instructions, learned counsel for the Power Corporation submits that the electricity connection in the name of petitioner's father has been disconnected on 25.03.2021. No mutation application has been moved by the petitioner under the UP Electricity Supply Code, 2005 after the death of his father. On the basis of enquiry, it is found that the petitioner's father had already been expired and the petitioner is using the electricity connection on account of which a first information report has also been lodged against the petitioner and others on 27.04.2020 (copy of which has been annexed vide Annexure No. 1 to the writ petition). He further contends that, in case, the petitioner is aggrieved by the computation of electricity charges, he has an alternate remedy to file an application under Clause 6.5 of the UP Electricity Supply Code, 2005 (hereinafter referred to as the 'Code').

Suffice to note that the petitioner has adequate alternative statutory remedy of correction in the disputed bill under Clause

6.5 of the Code.

Without entering into the merits of the case, the writ petition is ***disposed of*** with a direction that in case the petitioner files a proper representation before respondent no.2 within a period of two weeks' from today along with a copy of this order, the said respondent shall, within one week therefrom, communicate to the petitioner, the amount of pre-deposit required to be made to maintain that representation in terms of Clause 6.5(b)(ii) of the Code, at the address supplied by the petitioner in his application. Once the amount has thus been communicated to the petitioner, he shall deposit the same within a further period of two weeks' therefrom. Upon deposit of that amount, the respondent no.2 shall proceed and pass appropriate orders giving adequate reasons within a week from the deposit being made by the petitioner and the same shall be communicated to the petitioner.

For a period of six weeks' or till any final decision is taken on the said representation of the petitioner, whichever is earlier, no coercive action shall be taken against him pursuant to the impugned recovery citations.

Order Date :- 20.7.2021

Saurabh